

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YESENIA MOZ CASTRO,	)	Case Number: FDV-23-816763
Petitioner	)	Hearing Date: August 4, 2026
VS.	)	Hearing Time: 9:00 AM
JUAN CARLOS MENENDEZ FUNES,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)
TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Yesenia Moz Castro (Mother) and Juan Carlos Menendez (Father) have one minor child together, Valerie (DOB 4/29/2021, age 5).
- 2) On 7/19/2023, this Court issued a 2-year Domestic Violence Restraining Order (DVRO) against Father protecting Mother. The Court awarded sole legal and sole physical custody of Valerie to Mother, with one hour of weekly parenting time for Father, supervised by the maternal grandmother. The Court ordered that the grandmother may cancel the visit if she is not available or if she believes Father is not sober.
- 3) On 2/11/2026, Father filed a request seeking parenting time every Saturday from 1PM to 5PM. He stated he did not see Valerie after 2024 because Mother did not let him see her. He stated that Mother recently asked him if he would agree to have her current husband adopt Valerie.
- 4) Mother filed a response stating Father saw Valerie only 3 or 4 times, spent only 10 to 30 minutes with her each time, had not seen her since 2/24/2024, and had not called Valerie on her birthday or other special occasions. Mother stated she also assumed the parental role for Father’s daughter

Victoria for some time because Father was unable to care for her, had multiple DVROs against him, and had lost custody of a son.

- 6) At a 4/30/2026 hearing on Father's request, the Court ordered that Father shall have visits every Saturday from 6:30PM to 7:30PM, supervised by the maternal grandmother at the grandmother's house or at another location approved by the grandmother. The Court set a review hearing for 7/14/2026, which was continued to 8/4/2026.
- 7) On 4/30/2026 (the same day as the last hearing), Mother filed a new request to suspend visits. She reiterates many of the statements she made in her original request. This request is set for hearing on 8/4/2026.
- 8) On 7/9/2026, Father filed a declaration stating the visits have been going well and he wishes to continue seeing Valerie. He attaches a May 2026 certificate for completion of a parenting class from Kids' Turn.
- 9) The parties attended mediation on 7/15/2026 and were unable to reach an agreement.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) The Court finds it is in Valerie's best interest to maintain the current order. The parties shall continue to follow all orders set forth in the 6/1/2026 Findings and Order After Hearing (from the 4/30/2026 hearing).
- 3) The Court will prepare the Findings and Order After Hearing.